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Preventing HIV + Mandating more women leaders + Uncontested CaLeg candidates

December 30, 2019 | Sacramento Bee, The: Web Edition Articles (CA)
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OpenURL Link

Good Monday morning, alerters! I'm back from my vacation and want to hear all the #caleg things: hwiley@sacbee.com

PREPPED

Via Leslie Hicks and Adeola Ogunsanya...

A pair of drugs that can dramatically reduce the risk of HIV will become more easily available with the new year, after the California Legislature passed legislation that removed barriers to the medication.

The new law, Senate Bill 159, allows pharmacists to distribute the antiretroviral medications PrEP and PEP without a physician's prescription. It also prohibits insurance companies from requiring people to obtain prior authorization before using insurance benefits to acquire the medication.

Pre-exposure prophylaxis, known as PrEP, can reduce the risk of HIV from sex by about 99 percent if taken correctly according to the Centers for Disease Control and Prevention.

To access PrEP, patients will be able to either present a recent HIV negative test result to a participating pharmacist, or the pharmacy can perform the HIV test via a pharmacist who is appropriately credentialed with the California Department of Public Health to perform HIV tests.

Only after the pharmacist has confirmed the patient is HIV negative will the patient be prescribed PrEP. The law limits the PrEP supply that pharmacists can dispense to a maximum of 60 days so people may still need to see their medical providers.

Post-exposure prophylaxis, known as PEP, can stop the virus from replicating if taken within a 72-hour window after possible exposure has occurred.

One of the law's authors, Sen. Todd Gloria, D-San Diego, said he believes that improving accessibility of PrEP and PEP will lead more people in underserved communities to use the medication.

"Poverty is a driver for this disease now," Gloria said.

Clint Hopkins, owner and pharmacist in charge of Pucci's Pharmacy in Sacramento supported the law and plans to be a PrEP and PEP provider.

"I do not think there will be a downside," Hopkins said in an email. "There should not be any stigma placed around (sexually transmitted infections). Stigmatizing natural sexual behavior is what increases the transmission of (sexually transmitted infections) because when people feel shamed by their medical provider, they are less likely to seek treatment."

You can read the full collaborative report between McClatchy and seniors in the journalism program at Sacramento State University here.

A FEMALE FUTURE IN THE BOARDROOM

Tick tock...

Publicly held corporations in California have just two days to fulfill their legal obligation of placing a woman on their boards.

The requirement is a result of Senate Bill 826, written by state Sen. Hannah-Beth Jackson in 2018 and signed by then-Gov. Jerry Brown.

The Santa Barbara Democrat's law requires that each publicly held corporation have at least one woman serving as a director by the end of this year. For companies with five board members, their requirement will increase to two women by 2021, and three for boards of six or more members.

When Jackson wrote the measure, women comprised less than 16 percent of board positions in California. About a third of the more than 600 companies in California subject to the law did not have female representation on their boards at the time, according to the New York Times.

Jackson said the mandate is already increasing greater parity in boardrooms throughout California.

"In just one year, SB 826 has had an enormous impact on gender equity in the boardroom," Jackson said in a press release. "The law sparked a national conversation about the makeup of our boards, led several companies to bring more women onto their leadership teams, and opened doors for talented women across the state. With numerous independent studies showing that corporations with women on their boards are more profitable, there is simply no excuse for shutting women out of the boardroom."

Companies that shirk the law face a $100,000 penalty, which could increase to $300,000 for continued violations. Groups opposed to the measured raised concerns that the legislation focused only on one aspect of diversity and that SB 826 violated equal protection under both the state and U.S. constitution. The law now faces two lawsuits.

The first legal challenge was filed in August to block any taxpayer money from funding the enforcement of the legislation. The lawsuit was filed by the conservative group Judicial Watch on " behalf of three California taxpayers."

The second suit alleges the law is "deeply patronizing to women" as well as "plainly unconstitutional" and was filed by attorneys for Creighton Meland, Jr., a shareholder of a company headquartered in California called OSI Systems, Inc.

"The Woman Quota imposes a sex-based quota directly on shareholders, and seeks to force shareholders to perpetuate sex-based discrimination," the November lawsuit includes.

FLYING SOLO

It's official. California Secretary of State Alex Padilla formally certified on Thursday the list of candidates qualified for the primary election on March 3.

Of course, we're paying attention to the dozens (literally, more than 50) candidates vying for the White House.

But what caught my eye — thanks Patrick Caslin — was the number of incumbent California Capitol lawmakers who are running uncontested.

Here's the full list:

State Sen. Bill Dodd, D-Napa (District 3)State Sen. Nancy Skinner, D-Berkeley (District 9)State Sen. Anthony Portantino, D-La Cañada Flintridge (District 25)State Sen. Richard Roth, D-Riverside (District 31)State Sen. Lena Gonzalez, D-Long Beach (District 33)Senate President Pro Tem Toni Atkins, D-San Diego (District 39)Assemblyman Frank Bigelow, R-O'Neals (District 5)Assemblyman Kevin McCarty, D-Sacramento (District 7)Assemblyman Jim

Frazier, D-Discovery Bay (District 11)Assemblyman David Chiu, D-San Francisco (District 17)Assemblyman Adam Gray, D-Merced (District 21)Assemblyman Jim Patterson, R-Fresno (District 23)Assemblyman Jesse Gabriel, D-Encino (District 45)Assemblywoman Blanca Rubio, D-Baldwin Park (District 48)Assemblywoman Wendy Carrillo, D-Los Angeles (District 51)

SHOW ME THE MONEY

In case you missed Friday's must read...

How have counties throughout California spent $8 billion on "realignment," the idea to divert inmates from prisons to local jails?

Without much scrutiny and oversight, it turns out.

A McClatchy and ProPublica investigation found that though local governments routinely move money from one law enforcement purpose to another, doing so with realignment funds may have violated state law.

Reporters Jason Pohl and Ryan Gabrielson detail in their report how local officials and law enforcement representatives throughout California have, at times, authorized realignment dollars for unrelated initiatives.

The questionable spending has prompted a response out of the Legislature.

"The state should have been asking for supportive documents every year," said state Sen. John Moorlach, a former Orange County supervisor who has been critical of local realignment spending. "That's just a simple management program."

Assemblyman Kevin McCarty echoed the call for such a review, and said he will introduce legislation next year to allow for the creation of sheriff oversight agencies. A similar bill stalled in the Senate this year.

QUOTE OF THE DAY

"It's no surprise, but it's disappointing. I guess the district attorney has not seen a police shooting she has never not liked."

- Sacramento attorney Mark Merin, after the Stanislaus County district attorney's office announced it will not charge a Ceres police officer who fatally shot a 15-year-old in the back in 2018.

Best of The Bee:

The Golden State has a suicide problem. Californians who visited an emergency room after suicide attempts were at a greater risk of dying one year after leaving the hospital, raising questions about the role of health care providers once a patient is discharged, a new study shows, by Mike Finch IICalifornia lawmakers had another busy year passing gun-related legislation. Gov. Gavin Newsom, a staunch proponent of gun control, signed more than a dozen bills one day this fall, by Ryan SabalowCalifornians will have more than 50 options when they consider which presidential candidate to support for the March 3, 2020 primary, by Bryan Anderson

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- **Citation (apa Style)**
  Wiley, H. (2019, December 30). Preventing HIV + Mandating more women leaders + Uncontested CaLeg candidates*Sacramento Bee, The: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/178281A11680BA18.